

of a collective action by pleading, litigating, and releasing PAGA claims, they must also follow the rules of collective actions and have their fees relate to the benefit to the whole. That some portion of their fees is coming from the individual payouts would be of no consequence if this were an individual case. But it is not.

Moreover, the individual payments to Miguel and Maricich are framed not as an “enhancement payments” but as individual settlements from a gross settlement amount. As is evident above, the Court cannot figure out what amount is the individual amount for each of the individual Plaintiff’s enhancement and what amount is actually attorney’s fees. On their face, these enhancement payments are not acceptable.

#### **D. Conclusion**

Counsel did relatively little work on this case and achieved minimal success. The State of California gets less than \$1,200. The employees who are not Vanessa Miguel and Melissa Maricich get less than \$615 collectively. This is not a PAGA resolution. This is an individual case masquerading as a PAGA case, with individual results that are absolutely respectable, but abysmal on a representative basis. The Court cannot approve this settlement, with its corresponding waivers. The request for approval is **denied**.

**9. 9:00 AM CASE NUMBER: C24-03050**  
**CASE NAME: ZACH ROCKWELL VS. EAST BAY MUNICIPAL UTILITY DISTRICT**  
**HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT**  
**FILED BY: EAST BAY MUNICIPAL UTILITY DISTRICT**  
**\*TENTATIVE RULING:\***

Before the Court is Defendant East Bay Municipal Utility District’s Demurrer to First Amended Complaint.

Defendant’s unopposed Request for Judicial Notice is **granted**. (Evid. Code § 452 (c); *Gong v. Rosemead* (2014) 226 Cal.App.4th 363, 368, fn. 1.)

#### **Factual Allegations**

Plaintiffs are husband and wife who own real property located at 3215 Acalanes Avenue in Lafayette, California (“Property”). (¶ 1.) In approximately July 2021, Plaintiffs noticed an excessive amount of water saturating the soil in the front, side, and back yards and crawl space of the Property. (¶ 6.) They promptly called a plumber who determined that the water was not the result of a leak in the Property’s plumbing. (*Ibid.*) The plumber suggested Plaintiffs contact EBMUD and have it conduct a site inspection to determine if the leak was coming from an EBMUD maintained pipe. (*Ibid.*)

Plaintiffs contacted EBMUD which inspected the Property and found a water leak from an EBMUD pipe. (¶ 7.) Plaintiffs were told by EBMUD that the problem was fixed. (*Ibid.*) Water, however, continued to visibly leak onto the Property, flooding the yards and crawl space. (¶ 8.) Plaintiffs contacted EBMUD again, who inspected the area and informed Plaintiffs that no leaks were coming

from any of its pipes or facilities. (*Ibid.*) Plaintiffs hired a contractor who installed a French drain to attempt to remedy the situation but were unsuccessful in preventing the flooding which continued. (¶ 9.)

In November 2021, Plaintiffs contacted EBMUD again, who inspected the Property for a third time. They were still unable to determine the cause of the flooding. (¶¶ 10-11.) After multiple visits, the EBMUD inspectors eventually found a backup or blockage of the water in the water line under the manhole cover in front of Plaintiff's neighbor's property. (¶ 11.) EBMUD indicated it was not their pipe, and suggested Plaintiffs contact the City of Lafayette Public Works for assistance. (*Ibid.*) At that time, Plaintiffs began observing significant signs of water damage inside the house. (¶ 12.)

Plaintiffs contacted the City of Lafayette, who directed them to Contra Costa Public Works. (¶ 13.) At the end of November 2021, a representative of Public Works conducted a site visit and concluded the subject storm drain/water line was not the City of Lafayette's responsibility, and that Plaintiffs should contact EBMUD again. (*Ibid.*) During this time, Plaintiffs were attempting to conduct repairs to the water damage to their Property. (¶ 14.)

Plaintiffs contacted EBMUD in December 2021, who again inspected the Property and informed Plaintiffs that the water was not coming from pipes maintained by them, and that they should contact the Public Works again. (¶ 15.) Plaintiffs contacted the City of Lafayette and Public Works which both re-affirmed that the pipers were not maintained by them. (¶ 16.) In December 2021, the storm drain began to visibly overflow with water. (*Ibid.*) Public Works continued to investigate and determine the location of the water line and what entity was responsible for it. (¶ 17.) Plaintiffs continued to suffer damage to their Property due to the flooding. (*Ibid.*)

On or about January 6, 2022, EBMUD again inspected the site and detected a blockage. (¶ 18.) At that time, EBMUD determined that the storm drain line had been installed by EBMUD in 1927 and that it had failed to maintain it. (¶ 19.) EBMUD removed the blockage in approximately mid-January 2022. (*Ibid.*) The flooding onto the Property decreased but did not stop. (*Ibid.*)

On January 22, 2022, Plaintiffs submitted a government claim to EBMUD. (¶ 20; RJN Ex. A.) EBMUD never responded to this claim. (¶ 20) EBMUD did however, contact Plaintiffs and request that it be allowed to investigate Plaintiffs' home while Plaintiffs were conducting initial repairs. (*Ibid.*) At that time, Plaintiffs also had their home inspected by an industrial hygienist and certified mold remediator. (¶ 21.) Multiple problems were identified. (*Ibid.*) In February 2022, EBMUD conducted its own inspection of the Property, but never shared the results with Plaintiffs. (¶ 22.)

On February 8, 2022, two EBMUD representatives, Kim Damico and Daryll Yagi, both told Plaintiffs that EBMUD could not process their claim until all repairs were completed. (¶ 22.) "As part of this conversation, Ms. Damico and Mr. Yagi told Plaintiffs that the process for submitting a government claim was that Plaintiffs had to perform repairs before EBMUD could consider their claim and compensate them, and that until then their claim would remain open." (*Ibid.*) Mr. Rockwell had subsequent conversations with Mr. Yagi which confirmed his understanding that repairs had to be completed first before EBMUD would pay on the claim. (*Ibid.*) Later email communications also seemed to confirm this procedure. (*Ibid.*)

Plaintiffs paid hundreds of thousands of dollars to remediate their Property. (¶ 23.) Remediation took many months, and the air quality was not cleared until July 2022. (*Ibid.*) They hired a contractor in September 2022 to repair the Property. (¶ 25.) Most of the repairs were completed by August 2023, with the full repairs being completed in February 2024. (*Ibid.*)

In July 2024, repairs were completed and the flooding causing damage to the Property was contained. (¶ 20.) Plaintiffs submitted another EMBUD Claim Form on July 9, 2024, which expanded on the claim by including all the repairs made to date. (¶ 25; RJN Ex. B.) Plaintiffs believed this was the next step in the process explained to them by EBMUD. (*Ibid.*)

On August 23, 2024, EBMUD sent Plaintiffs letters explaining that “[t]o the extent that the EBMUD Claim Form, dated 7/9/2024, ... was intended to be a separate claim from the EBMUD Claim Form, dated 1/22/2022 ... it is being returned because it was not [timely] presented....” (RJN Exs. C-D.) “This was the first time that EBMUD had given any indication that it was rejecting Plaintiffs’ claim and was contrary to what it had previously represented to Plaintiffs, which was that their claim remained open pending submission of all repairs.” (*Ibid.*)

Plaintiffs filed their Complaint on November 12, 2024. A First Amended Complaint was filed on March 13, 2025. It asserted four causes of action: (1) inverse condemnation; (2) nuisance; (3) trespass; and (4) maintenance of a dangerous condition in violation of government code § 835.) EBMUD demurred to each cause of action in the FAC. The Court overruled the demurrer as to the inverse condemnation cause of action. The Court sustained the demurrer on statute of limitations grounds as to the three remaining causes of action. After hearing argument, the Court granted Plaintiffs leave to amend to give them an opportunity to plead facts to support their estoppel and/or tolling arguments.

The Second Amended Complaint was filed on October 14, 2025. EBMUD now demurs to the second, third, and fourth causes of action.

### **Standard for Demurrer**

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 (“*Doheny*”).)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

“Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 citing *Speegle v. Board of Fire Underwriters* (1946) 29 Cal.2d 34, 42.) In reading a complaint in the context of a demurrer, the court gives “the complaint a reasonable interpretation and read it in context.” (*Schifando v. City of Los Angeles* (2003)

31 Cal.4th 1074, 1081.) The allegations in the complaint must be construed “liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.)

### **Analysis**

#### **Statute of Limitations**

As conceded by both parties, the only substantive changes to the SAC relate to Plaintiff’s allegations pertaining to their estoppel/tolling arguments contained in paragraphs 22, 25, and 26. (See e.g. Opp at 4:5-6: “The amended allegations central to estoppel and equitable tolling appear in paragraphs 22, 25, and 26.”) The Court’s October 2, 2025, Order After Hearing extensively discusses the application of the statutes of limitations in this matter, finding that, on the face of the FAC the claims were barred by the applicable statutes of limitations.

Here, neither party disputes that prior ruling, but instead the focus of the demurrer is on whether the SAC alleges sufficient facts to support an equitable estoppel and/or tolling argument. The Court incorporates by reference the October 2, 2025, Order After Hearing with regarding the underlying analysis and will now only focus on the estoppel/tolling arguments.

#### **Estoppel**

“The essential ingredients of an estoppel are (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct be acted upon, or must so act that the other party has a right to believe that it was so intended; (3) the other party must be ignorant of the true state of facts; and (4) the other party must rely on the conduct to her injury.” (*Moore v. State Bd. of Control* (2003) 112 Cal.App.4th 371, 384.)

“A public agency may be equitably estopped in the same manner as a private party.” (*Citizens for a Responsible Caltrans Decision v. Dep’t of Transp.* (2020) 46 Cal.App.5th 1103, 1128.) “[C]onduct on behalf of a public agency, which would induce a reasonably prudent person to avoid seeking legal advice or personally commencing litigation, may estop the public agency from asserting a claims defense ... .” (*Ibid.* quoting *Bertorelli v. City of Tulare* (1986) 180 Cal.App.3d 432, 440.)

On January 22, 2022, Plaintiffs submitted a government claim to EBMUD. In February of that year, EBMUD inspected the Property and “specifically represented to Plaintiffs that it would consider Plaintiffs’ claim once repairs were completed and that Plaintiffs should delay further submissions to EBMUD until repairs were complete.” (¶ 22.) About 2 weeks later, on February 8, 2022, EBMUD conducted a site inspection of the Property. At that time, two representatives of EBMUD again informed Plaintiffs that it could not process their claim until all repairs were completed. (*Ibid.*) “As part of this conversation, Ms. Damico and Mr. Yagi told Plaintiffs that the process for submitting a government claim was that Plaintiffs had to perform repairs before EBMUD could consider their claim and compensate them, and that until then their claim would remain open.” (*Ibid.*)

Subsequently, Mr. Rockwell had additional conversations and email communications with the EBMUD representative which confirmed his understanding that repairs had to be completed first before EBMUD would pay on the claim. These communications led Plaintiffs to believe that their claim would remain open while the necessary repairs were completed and that they should supplement their

claim when the repairs were complete.

Plaintiffs proceeded with their repairs, then submitted a second 'supplemental' claim on July 9, 2024. On August 23, Plaintiffs each received letters from EBMUD indicating that their July Claims were being rejected as untimely – to the extent that they were “intended to be a separate claim” from the January 22, 2022, claim. It was at this time that Plaintiffs first realized that EBMUD did not ‘keep their claim open’ and did not intend to act upon their Government Claim.

“An estoppel may arise although there was no designed fraud on the part of the person sought to be estopped. [Citation.] To create an equitable estoppel, ‘it is enough if the party has been induced to *refrain* from using such means or taking such action as lay in his power, by which he might have retrieved his position and saved himself from loss.’ [Citation.]” (*Bertorelli v. City of Tulare* (1986) 180 Cal.App.3d 432, 440 quoting *Benner v. Industrial Acc. Com.* (1945) 26 Cal.2d 346, 349-50.) “Where the delay in commencing action is induced by the conduct of the defendant it cannot be availed of by him as a defense.” (*Benner*, 26 Cal.2d at 350.)

As EBMUD’s authority states: “Estoppel most commonly results from misleading statements about the need for or advisability of a claim; actual fraud or the intent to mislead is not essential.” (*Ortega v. Pajaro Valley Unified School Dist.* (1998) 64 Cal.App.4th 1023, 1044.) The *Ortega* court noted that estoppel had been applied in cases such as when the public entity “gave plaintiff verbal and written assurances that it need not take any further action to perfect a claim against the district, and plaintiff reasonably relied on these representations.” (*Id.* at 1045 citing *Ocean Services Corp. v. Ventura Port Dist.* (1993) 15 Cal.App.4th 1762, 1776.) As the *Ocean Services Corp.* found: “The claims may not be invoked to penalize a plaintiff who at the behest of a public entity has been induced not to take action, but instead to wait until the situation creating a conflict has stabilized.” (*Ocean Services*, 15 Cal.App.4th at 1776.)

Here, Plaintiffs submitted a comprehensive 50+ page Claim Form. About two weeks later, EBMUD representatives came to the Property, inspected the site, and informed them that their claim could not be processed until all repairs were completed. They were also told that their claim would ‘remain open’ until they did so. Notably, this all occurred within the 45-day window within which EBMUD was required to act. As such, the claim was still open and pending when the EBMUD representatives made these statements to Plaintiffs.

As noted by EBMUD, the statute indicates that the 45-day review period can be extended ‘by written agreement.’ First, there are allegations that there were email subsequent to the inspection which “further confirmed” Mr. Rockwell’s understanding that the claim would remain open until the repairs were completed. These emails may support a showing that there was a ‘written agreement’ to extend the time for EBMUD to respond to the Claim. At least, at the demurrer stage, where the allegations in the complaint must be construed “liberally in favor of the pleader,” that is a reasonable reading of the allegations. (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Second, the point of an estoppel argument is that the defendant improperly misled Plaintiffs (intentionally or not) to refrain from “using such means or taking such action as lay in his power” to ‘save himself from loss.’ (*Benner* 26 Cal.2d at 349-50.) Plaintiffs’ position is that a writing wasn’t necessary because they were misled by the statements of the EBMUD representatives.

EBMUD was aware of the facts in that it knew that Plaintiffs had submitted a claim seeking compensation for an event Plaintiff's believed it was (at least partially) responsible for. The EBMUD representatives made representations that Plaintiffs had a reasonable right to rely upon – namely, that their claim would remain open until the repairs were completed. Plaintiffs were not aware that their claim would be rejected by operation of law despite these statements by EBMUD that their claim would remain open until Plaintiff's supplemented their claim. Instead, Plaintiffs reasonably relied upon the representations of the EBMUD representatives that came to the Property to inspect the site and discuss their claim.

EBMUD argues that for estoppel to apply, the "act or omission must constitute a misrepresentation or nondisclosure of a material *fact*, rather than law," quoting *Millview Cnty. Water Dist. v. State Water Res. Control Bd* (2019) 32 Cal.App.5th 585, 599. Here, the misrepresentation was of fact – *i.e.* that the claim would remain open until such time as Plaintiffs submitted a new/supplemental claim including all repairs made. Notably, these statements were made while the claim was still open. It is reasonable to expect a person to rely upon such statements by an EBMUD representative and conclude that there was nothing else they needed to do until such time as the repairs were complete and they updated their claim.

"Estoppel generally is a question of fact." (*Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1506.) It is only when the "facts are undisputed and *only one reasonable conclusion can be drawn from them*," that "whether estoppel applies is a question of law." (*Ibid.* emphasis added.) "Estoppel may be proven by reasonable inferences drawn from the evidence." (*Estill v. County of Shasta* (2018) 25 Cal.App.5th 702, 710.) "A demurrer is not the proper vehicle by which to resolve such factual issues...." (*Elmore v. Oak Valley Hospital Dist.* (1988) 204 Cal.App.3d 716, 724.)

Based on the above, the Court finds that the SAC sufficiently pleads facts that may support an equitable estoppel argument.

#### **Laurie Rockwell's Claim**

The presentation of a claim to a public entity and its rejection are prerequisites to maintaining suit against the entity. (*Nguyen v. Los Angeles County Harbor/UCLA Medical Center* (1992) 8 Cal.App.4th 729, 732.)

"The purpose of the claim requirements is to provide a public entity with sufficient information to enable it to investigate and evaluate the merits of claims, assess liability, and, where appropriate, to settle claims without the expense of litigation." (*Ibid.*) "It has been held that, when the underlying purposes of the claims statutes have been satisfied, the courts should employ a substantial compliance test to determine whether the plaintiff has met the filing requirements." (*Ibid.* citation omitted.) "The doctrine of substantial compliance prevents the public entity from using the claims statutes as "traps for the unwary" when their underlying purposes have been met. (*Id.* at 732-33.)

"Government Code section 910 provides that a claim shall be presented by a claimant or 'by a person acting on his behalf' and section 910.2 provides that the claim shall be signed by claimant or 'by some person on his behalf.'" (*Lacy v. City of Monrovia* (1974) 44 Cal.App.3d 152, 155.)

Plaintiffs are husband and wife and jointly own the Property. The initial Claim Form submitted on January 22, 2022, identifies the claimant as “Zachary Rockwell” and is signed by Mr. Rockwell. The description of the claim repeatedly indicates that “we” noticed problems, called persons to perform work, and called EBMUD and other entities, among other things. It notes that Laurie Rockwell communicated with EBMUD regarding the issues. Despite EBMUD’s claim that the “second submission, dated July 9, 2024, was again only presented by Zack Rockwell,” it specifies: “Zack and Laurie Rockwell, hereafter referred to as ‘claimants’, ‘we’ or ‘us’, ...” (RJN Ex. B at p. 1.)

While the initial Claim Form could have been clearer that both husband and wife were submitting the claim jointly, it does repeatedly indicated that “we” – meaning more than one person – were seeking compensation for the damage to the Property. The ‘supplemental’ Claim Form submitted in 2024 clarifies that the Claim is being submitted on both of their behalf. Ultimately, the Claim relates to damage to the Property – which is the house of both Zachary and Laurie Rockwell. “To require that the [Rockwell] claim be divided into two separate claims in this situation would not serve the intended purpose of the claim statute and [might] result in unfairly precluding a determination of [Plaintiff’s] claim on its merits.” (*Lacy*, supra, 44 Cal.App.3d at 156.)

EBMUD was aware that a claim was being submitted related to damage to the Property – a residential home. The Claim Form, while submitted by Zach Rockwell, sets forth claims to the joint property of he and his wife. It also repeatedly indicates what “we” did to identify the issues and what damage “we” incurred. This information was sufficient to put EBMUD on notice that the joint owners of the Property were submitting a claim for damage thereto.

### **Nuisance**

The Government Claims Act “mandates that ‘all government tort liability must be based on statute.’” (*Agustin v. Golden Empire Transit Dist.* (2025) 116 Cal.App.5th 426, 440.) “Because a government’s duty is based solely on statute, the statute ‘claimed to establish the duty must at the very least be identified.’” (*Id.* at 441.) Here, Plaintiffs allege that EBMUD’s conduct constitutes “a nuisance within the meaning of Civil Code § 3479....” (§ 34.)

EBMUD appears to argue that a nuisance claim cannot be based on a dangerous condition of public property. While that may be true, the SAC can, and does, allege separate theories of liability. Plaintiffs’ fourth cause of action relates to a dangerous condition of public property. The second cause of action for nuisance is specifically based on Civil Code section 3479 – which defines nuisance. It is clear that “modern practice allows [a] party to plead in the alternative....” (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402; see also *Rader Co. v. Stone* (1986) 178 Cal.App.3d 10, 29 noting “the pleading may properly set forth alternative theories in varies and inconsistent counts.”)

“In *Nestle v. City of Santa Monica*, 6 Cal.3d 920, 936 [], the [California] Supreme Court held Civil Code section 3479 was a basis for nuisance actions against public entities; and section 815 of the Government Code constituting tort liability of public entity did not create a sovereign immunity defense as to such actions based upon Civil Code sections 3479, 3480, 3481.” (*Helix Land Co. v. City of San Diego* (1978) 82 Cal.App.3d 932, 949; see also *Vedder v. County of Imperial* (1974) 36 Cal.App.3d 654, 661 finding “Government Code section 815 does not bar nuisance actions against public entities

to the extent that such actions are founded on Civil Code section 3479, 348, and 3481, which define public and private nuisance.”) “An act of ... diversion of water constitutes a nuisance under Civil Code section 3479. (*Helix Land Co.* 82 Cal.App.3d at 949.)

Two years after *Nestle* the California Supreme Court held that the government claims statute applies “to actions brought [] for nuisance....” (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 454. This holding confirms that a party may bring a claim for nuisance against a public entity.

While EBMUD makes clear it is “not arguing that a nuisance claim could never be stated,” it relies upon *Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.3d 379 to support its position that when a party asserts a dangerous condition claim it cannot also maintain a claim for nuisance. “[T]o the extent that the opinion in *Longfellow* could be construed, as [EBMUD] maintain[s], to preclude a plaintiff from simultaneously asserting causes of action for nuisance and for a dangerous condition of real property, [the Court] decline[s] to follow it.” (*Pfleger v. Superior Court* (1985) 172 Cal.App.3d 421, 431.)

### **Trespass**

As noted above, all government tort liability must be based on statute. (*Agustin*, 116 Cal.App.5th at 440; see also, *Cochran v. Herzog Engraving Co.* (1984) 155 Cal.App.3d 405, 409.) “Thus, in the absence of some constitutional requirement, public entities may be liable *only* if a statute declares them to be liable.” (*Cochran* 155 Cal.App.3d at 409.) “Because a government’s duty is based solely on statute, the statute ‘claimed to establish the duty must at the very least be identified.’” (*Agustin*, supra, 116 Cal.App.5th at 441.)

Unlike with the nuisance cause of action, Plaintiffs do not identify a statutory basis for their trespass claim.

### **Leave to Amend**

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.) A trial court does not abuse its discretion in denying leave to amend when the moving party “merely stated in its opposition to [the] demurrer [or motion to strike] that ‘if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend....’” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

Plaintiffs do not request leave to amend in their opposition. Nor do they make any substantive argument that they can properly plead a trespass cause of action against a public entity – given there is not statutory basis for such a cause of action. As such, leave to amend is **denied**.

### **Conclusion**

The Court rules on Defendant EBMUD’s demurrer as follows:

- **Overruled** as to the statute of limitations argument regarding timeliness of filing suit after



submitting the government claim.

- **Overruled** regarding Laurie Rockwell's claims.
- **Overruled** as to the second cause of action for nuisance.
- **Sustained** as to the third cause of action for trespass, without leave to amend.

**10. 9:00 AM CASE NUMBER: C24-03551**  
**CASE NAME: LAMOND KING VS. MOISES BARRAGAN RAMIREZ**  
**\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**  
**FILED BY: KING, LAMOND**  
**\*TENTATIVE RULING:\***

The motion to be relieved as counsel by counsel for Lamond King is **GRANTED**.

Notice to Lamond King: You may wish to seek legal assistance. If you do not have a new attorney to represent you in this action or proceeding, and you are legally permitted to do so, you will be representing yourself. It will be your responsibility to comply with all court rules and applicable laws. If you fail to do so, or fail to appear at hearings, action may be taken against you. You may lose your case.

**11. 9:00 AM CASE NUMBER: C25-01498**  
**CASE NAME: STEVEN IMBURGIA VS. ALEJANDRO SACUL GOC**  
**\*HEARING ON MOTION IN RE: INTERVENE**  
**FILED BY: PROGRESSIVE INSURANCE COMPANY**  
**\*TENTATIVE RULING:\***

This motion has already been addressed by stipulation and order filed February 26, 2026.

**12. 9:00 AM CASE NUMBER: C25-02263**  
**CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY**  
**\*HEARING ON MOTION IN RE: TO CONSOLIDATE UNLAWFUL DETAINER (MS25-0977) WITH CIVIL RIGHTS ACTION (C25-02263) PURSUANT TO CCP 1048**  
**FILED BY: GODDARD, THOMAS JOSEPH**  
**\*TENTATIVE RULING:\***

Before the Court is Plaintiff Thomas Goddard's Motion to Consolidate Unlawful Detainer (MS25-0977) with Civil Rights Action (C25-02263).

Plaintiff's Motion is **denied**.

**Factual Allegations and Procedural Background**